Do not use in the field yet. This is the draft to submit to counsel. The two statutory notices below must be confirmed against current Texas law before any rep carries this. Until it is cleared, close on the inspection report and claim intake form only.

Inspection & repair agreement.

Power Edge, LLC d/b/a PowerEdge · North Texas

HOMEOWNER NAME(S) _____ DATE _____

PROPERTY ADDRESS _____ PHONE / EMAIL _____

1. WHAT POWEREDGE WILL DO

PowerEdge will inspect and photograph the roof and related components at no charge, provide a written assessment of observed conditions, and, where the homeowner elects to pursue an insurance claim, attend the carrier's adjuster appointment to present its documentation, measurements, and estimate.

2. WHAT POWEREDGE WILL NOT DO

PowerEdge is a contractor, not a public insurance adjuster. Consistent with Texas Insurance Code § 4102.163, PowerEdge will not file the homeowner's claim, negotiate or adjust the claim on the homeowner's behalf, interpret policy coverage, or advise the homeowner on the value of the claim. All coverage decisions rest with the homeowner and the homeowner's carrier.

3. SCOPE, PRICE, AND WHEN WORK BEGINS

No repair or replacement work is authorized by this agreement. Work begins only under a separate written scope and price, signed by the homeowner, after the carrier has issued its scope of loss where a claim is involved. The homeowner understands that work performed before the adjuster inspects may not be covered.

4. DEDUCTIBLE

TEXAS LAW REQUIRES A PERSON INSURED UNDER A PROPERTY INSURANCE POLICY TO PAY ANY DEDUCTIBLE APPLICABLE TO A CLAIM MADE UNDER THE POLICY. IT IS A VIOLATION OF TEXAS LAW FOR A SELLER OF GOODS OR SERVICES WHO REASONABLY EXPECTS TO BE PAID WHOLLY OR PARTLY FROM THE PROCEEDS OF A PROPERTY INSURANCE CLAIM TO KNOWINGLY ALLOW THE INSURED PERSON TO FAIL TO PAY, OR ASSIST THE INSURED PERSON'S FAILURE TO PAY, THE APPLICABLE INSURANCE DEDUCTIBLE.

ATTORNEY REVIEW Confirm this is the current required wording under Tex. Bus. & Com. Code § 27.02 and that 12-point bold satisfies the type requirement as rendered here.

5. RIGHT TO CANCEL

YOU, THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT.

Where the homeowner's insurer denies all or part of the claim, the homeowner may also cancel within the period allowed by law after receiving that notice.

ATTORNEY REVIEW Confirm the Chapter 601 notice wording, the duplicate Notice of Cancellation attachment, and whether the homeowner-initiated exception applies when the homeowner booked the inspection themselves. House rule until cleared: give the notice on every door-knocked agreement.

6. INSURANCE AND WORKMANSHIP

PowerEdge carries $2,000,000 in commercial general liability coverage; a certificate is available on request. Completed workmanship is guaranteed for one year from substantial completion. Manufacturer warranties on materials pass through to the homeowner under the manufacturer's own terms.

7. FINANCING (IN HOUSE)

Where PowerEdge finances the deductible or the project itself rather than referring the homeowner to a third-party lender, the financed amount, payment schedule, any finance charge, and all required disclosures are set out in a separate written agreement signed before work begins. The homeowner remains obligated for the full deductible; PowerEdge does not waive, rebate or absorb any part of it.

Both plans carry **no interest and no finance charge**. The amount financed is the amount repaid.

ATTORNEY REVIEW Texas Finance Code Chapter 345 (retail installment sales) registration with the Office of Consumer Credit Commissioner is triggered by selling on a retail installment contract *with a finance charge*. PowerEdge charges none, which is the basis for not registering. Counsel to confirm that (a) this holds with no interest, origination, administrative or late fees of any kind, and (b) what disclosures a zero-charge plan still requires. **If an interest-bearing plan is ever introduced, the registration question returns immediately.**

8. PAYMENT

Where work proceeds under an insurance claim, amounts due are the carrier-approved scope plus any homeowner-approved upgrades, with the homeowner responsible for the deductible. Where work proceeds outside a claim, the separate written scope and price controls.

ATTORNEY REVIEW Counsel to add: payment schedule, mechanic's lien and residential construction notices, dispute resolution and venue, supplement handling, change orders, and any required Chapter 53 disclosures.

9. ENTIRE AGREEMENT

This document, together with the written scope and price, is the entire agreement. No representative of PowerEdge has authority to promise anything not written here, including any promise regarding a deductible or a claim outcome.

HOMEOWNER SIGNATURE _____ DATE _____

HOMEOWNER SIGNATURE _____ DATE _____

POWEREDGE REPRESENTATIVE _____ DATE _____